

The Myriad Dubai
Dubai International Academic City, Dubai, U.A.E.
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E : info@dxb.themyriad.com
www.themyriad.com/dubai



THE MYRIAD DUBAI TENANCY LETTER

Myriad ID: PER-TMD-1295

Date: 04/03/2025

Dear test,
Thank you for your recent application for accommodation. Below you will find confirmation of the accommodation. As long as the Tenancy Letter is accepted by you and your Guarantor and ourselves, your Tenancy will start from the date outlined below. The principal terms of the agreement are as follows

Landlord Details

Landlord	Student Housing Operations FZ – LLC
Landlord Address	Plot No. 8120287, Dubai International Academic City, Dubai, UAE
Correspondence Address	Plot No. 8120287, Dubai International Academic City, Dubai, UAE
Email	leasing@dxb.themyriad.com
Telephone	800 MYRIAD (Within UAE) or +971 52 145 7971 (International)

Tenant & Guarantor / Next to Kin Details

Tenant's Full Name	test		
Tenant's Address	Angola		
Email	sheikzain1355@gmail.com	Telephone	+923034871146
Guarantor's / Next of kin Full Name	sds	Relationship	Spouse
Email	faizan@gmail.com	Telephone	+9267676767

University Details

University Name	Brighton College Dubai
University ID Number	

Accommodation details

Property	The Myriad Dubai			
Block / room number	Block: Block A	Floor: 1st floor	Room No: G-004	Bed No: G-004b
Room type:	Double Room			

Tenancy Period

Lease start date	21/02/2025
Lease end date	24/02/2025

**Payment Schedule - Rent and other charges

Gross Rent Payable in AED	3650
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Discount applicable	Type		Amount	0
***Service Charge				
***Registration fee	0			
Net rent payable in AED	3650			
****Security Deposit	2500			

Cancellation Policy Standard Tenancy

1) **Cancellation Policy prior to check-in:** The Tenant may terminate this Tenancy Contract within fourteen (14) days of the booking confirmation date prior to check-in, without penalty, and any amounts paid in advance, including the Deposit, will be refunded in full, without set off or deduction. The cancellation charges will not apply and the full amount of the Deposit will be refunded. This cancellation policy will not apply if the booking was confirmed in less than 14 days prior to the start date of the Tenancy Contract, the Tenant further agrees that terms and conditions of this Tenancy Contract will apply.

2) **Cancellation Policy for termination of the Tenancy Contract:** Cancellation charges will apply, if the Tenant terminates this Tenancy Contract after 14 days of booking confirmation made and the Tenant agrees to pay a penalty of one (1) month's Rent in case of long-term stay (that spans for 30 days or more) and seven (7) days Rent in case of short-term stay (less than 30 days).

3) **Cancellation Policy for No-Show:** If Tenant fails to occupy the Room within seven (7) days of the Tenancy Start Date in case of long-term stay (that spans for 30 days or more) and three (3) days in case of short-term stay (less than 30 days) and fails to inform the Landlord of any delay in their occupation, this will be classified as a "no show" and the terms and conditions of this Tenancy Contract will still apply and remain in full force and effect. The Tenant will be charged the relevant early termination penalties, as applicable.

Completion of Tenancy

Until the Tenancy Contract is completed, the Landlord reserves the right to withdraw the provisional booking. In particular, the Landlord reserves the right not to complete the Tenancy Contract if the Tenant is in breach of any other tenancy or other agreement entered into with the Landlord or any other company that is a subsidiary of Student Housing Operations FZ-LLC.

By signing this letter, the Tenant and the Guarantor will, upon completion of the Tenancy Contract, create a binding legal contract. If either the Tenant and/or the Guarantor do not fully understand the nature of that Contract, it is recommended that they take independent legal advice before signing. IN PARTICULAR, THE ATTENTION OF THE GUARANTOR IS DRAWN TO CLAUSE 8 OF THE ENCLOSED TENANCY CONTRACT.

*Room changes: The Tenant agrees that room change between different room categories will incur additional fees. The Tenant shall be responsible for paying the difference in room rent for one (1) day in case of a short-term stay (less than 30 days) and in room rent for one (1) month in the case of long-term stay (that spans for 30 days or more), which are subject to availability.

**The Tenant agrees that Billing cycle will be from the 1 st day of each month based on the tenancy period. And the tenant affirms that Rent will be paid on or before the Due Date. The tenant is liable to pay the rent on a prorate basis in the month of move-in and move-out, if the tenancy agreement is signed for more than one month.

***VAT Applicable on Service Charges and Registration Fee.

****If a Security Deposit payment is applicable for your booking, this will be taken in advance, held on your account and interest-free refundable security deposit may be returned as per the Tenancy Contract.

To discover when your payments are due, go to <https://www.themyriad.com> and log in to your personal account page.

1. DEFINITION AND INTERPRETATION

1.1. In these Tenancy Contract:

"Accommodation" means the Room allocated to Tenant to live in and any shared facilities which the Tenant have the right to use under this Tenancy Contract;

"Common Areas" means any shared facility such as Lounge/s, Cinema Room/s, Gym, Game Rooms/s, Study Room, Kitchen, Dining Area, Laundry, entrance hall, stairs, corridors, laundry, courtyard, lifts, bicycle store, Bathroom, other recreational facilities and any other common areas in the Property provided for the benefit of all Tenants;

"Common Area Contents" means the fixtures, fittings and equipment in the accommodation.

"Rent" means the fee as set out in the Payment Schedule

"Room" means the Room as referred to in the Tenancy Letter including its Contents within the Room;

"Room Contents" means the furnishings, fixtures and fittings in the Room such as Bed with 2 base storage, Mattress, Bed side table, Bed Wall Lamp, Built in Closet 2 doors, Roller blind, Desk table with lockable drawer, Desk Chair, Fridge, Phone, Hangers, Floor Rug, Desk lamp, Book shelf unit, Waste bin, Shower Cubical Door, Sofa, Coffee Table etc.

"Security Deposit" is the interest free Security Deposit, as set out in the Payment Schedule;

"Services" means the following services provided in the Accommodation facility: provision of hot water to the Room, electricity supply, disposal of

“Guarantor” means parent or a guardian who signs this Tenancy Contract on behalf of the Tenant who is below the age where he or she can enter into a legal contract.

“Internet Usage Policy” means such Internet Usage Policy as is applicable to the Property and signed up by the Tenant when first accessing the internet to be provided on moving-in to the Room.

"Property" means the building or buildings where the Room, Common Areas and the Building Common Areas are situated;

"Payment Schedule" means the amounts and the dates on which the Fee must be made;

"Personal Data" means data which relates to a living individual who can be identified from those data, or from those data and other information which is in the possession of, or is likely to come into possession of the Landlord and includes any expression of opinion about the Customer and any indication of the intentions of the Landlord or any other person in respect of the Customer;

"Regulations" means such Regulations, Codes, Policies etc including, but not limited to those provided upon arrival to the Property, as we may make for the purpose of ensuring the safety, security, cleanliness and good management of the Property, any part of it, or the comfort or convenience of the Tenants of Rooms or in the Property, or the efficient or economical performance by us of our obligations under the Tenancy Contract;

“Rights” means the Tenant rights to avail or use the Accommodation during the Tenancy Period, Room & Common Area Contents, Common Areas and Services;

3. OTHER CONDITIONS

3.1. The Tenant hereby states that they are a student registered with the university/college in UAE or will be at the commencement of the Tenancy Period.

3.2. Should the Tenant no longer be a student at the university/college in UAE the Tenant will notify the Landlord within one (1) week of such change of status and shall vacate the Room and Property immediately. The Tenant shall remain liable for all of its obligations under this Tenancy Contract, until the date of vacating the Room.

3.3. The Landlord accepts no liability for loss or damage to or for any Tenant personal property whilst in the Premises nor for any Tenant liability to each other. Therefore, all Tenants are responsible for arranging insurance for their own personal effects as well as their own personal liability

3.4 Not sub-let or assign the whole, or any part, of the Room or Property or any of the Tenant's rights under this Tenancy Contract nor part with possession or share occupation of the Room. 3.5 Take all reasonable steps to ensure that the Room and the Property are kept secure from the intrusion of unauthorized persons (including shutting and locking windows and doors when the Tenant leaves).

3.6. The Tenant shall permit the Landlord and its authorized representative to inspect the room (in compliance with applicable protocols) without any prior notice.

3.7 The Tenant agrees that if they develop symptoms consistent with COVID-19, efforts shall be made immediately to minimize contact with all the other resident, guests and staff of the Property. The Tenant agrees to inform the resident support team immediately and follow the procedures in the COVID- 19 action plans instructed by the resident support team in the Property. The tenant agrees to take appropriate measures in consultation with local health authorities and adhere to the COVID-19 rules and regulation issued by the relevant Government authority

4. RENT AND OTHER CHARGES

4.1. The Tenant shall pay the Rent in accordance with the Payment Schedule, without any deduction or set-off. For the avoidance of doubt, the Rent is inclusive of all Service Charges, and Utilities as set out herein. If the Tenant fails to make payment of the due Rent on the due date, the Landlord will be entitled at its sole discretion to remarket the Room for re-letting from when the date that the payment was due.

4.2. Normal and reasonable residential use of electricity, gas, water, and sewerage utility services is included within the Rent. The Landlord reserves the right to charge the Tenant for non-residential or unreasonable or excessive use

waste, weekly cleaning of the Room, cleaning and lighting of the Common Areas, repair of the Room, access to wireless internet, Sport and entertainment facilities and Shuttle service at the discretion of the Landlord;

"Tenancy Contract" means the tenancy contract constituted by the Tenancy Letter, the Payment Schedule, Tenancy Contract, Code of Conduct and Annexures;

"Tenancy Letter" means the tenancy letter addressed to the Tenant which is enclosed with this Tenancy Contract;

"Tenancy Term" means the period from and including the Tenancy Start Date and ending on and including the Tenancy End Date, as many be amended in line with this Tenancy Contract.

2. TERM

2.1. The term shall be as stated in the Tenancy Letter.

2.2. This Tenancy Contract shall automatically renew for the same period as the Tenancy Period, on the terms and conditions as the initial Tenancy Period and until otherwise terminated in accordance with the terms of this Tenancy Contract.

2.3. During the term of this Tenancy Contract, the Tenant undertakes to pay Rent (defined in Tenancy Letter) on a monthly basis, on or before the first day of each calendar month. However, during the term of the Tenancy Contract, the Tenant agrees to pay the Rent in full and on time without deduction, offset, or counterclaim due to anticipated travel plans in the preceding or future month. The Tenant agrees to pay the Rent in advance seven (7) days prior to the end of the month before their anticipated extended journey. The Tenant agrees to notify the leasing team of any scheduled extended journey that is expected to last for a week or more.

5. REGISTRATION FEE

5.1. The Tenant will pay the Registration Fee at the time of booking.

5.2. The Registration Fee is non-refundable should an offer of accommodation be made by the Landlord and refused by the Tenant.

6. DEPOSIT

6.1 The Deposit shall be paid at the time of booking a Room and will be held by the Landlord for the duration of the Tenancy Period.

6.2. In addition to clauses 5 and 6, the Landlord shall be entitled to deduct from the Deposit any and all unpaid amounts owing by the Tenant pursuant to this Tenancy Contract and the cost incurred by the Landlord due to any breach of this Tenancy Contract by the Tenant, during the Tenancy Period.

6.3. The Deposit shall be returned at the end of the Tenancy Period less any damages costs/penalties/late payment fees, which will be confirmed in writing by the Landlord to the Tenant in advance.

6.4. The Deposit has been taken for the following purposes:

a) any damage, or compensation for damage, to the Room, Room Content, Property and Common Areas, its fixtures and fittings or for missing items for which the Tenant may be liable, subject to apportionment or allowance for fair wear and tear, the age and condition of each and any such item at the commencement of the Tenancy Contract and insured risks and repairs that are the responsibility of the Landlord;

b) replace any of the Room Content or Shared Items which may be missing from the Room or the Property;

c) the reasonable costs incurred in compensating the Landlord for, or for rectifying or remedying any breach by the Tenant of the Tenant's obligations under this Tenancy Contract, including those relating to the cleaning of the Room, Property, Service Areas or its fixtures and fittings;

d) any unpaid accounts for the services referred to in clause 4.2; and/or

e) any rent or other money due or payable by the Tenant under this Tenancy Contract of which the Tenant has been made aware and which remains unpaid after the end of the Tenancy Period.

of such services.

9. ACCESS BY THE LANDLORD

9.1. The Tenant must permit the Landlord and their agents with any necessary contractors and workmen to enter the Room at all reasonable times upon twenty-four (24) hours' prior notice (or in the event of emergency at any time without notice) in order to:

- a) carry out the services required under this Tenancy Contract;
- b) show the accommodation to prospective new tenants;
- c) a) examine the state and condition of the Room and the Common Area Content and the Room Content; and
- d) carry out any repairs to the Room that are reasonably necessary pursuant to the Landlord's responsibilities under this Tenancy Contract or

by statute and for any other reasonable purpose in connection with the management of the Property

8. THE GUARANTOR

8.1. The Guarantor guarantees to the Landlord that the Tenant shall pay the Rent and observe and perform the Tenant covenants of this Tenancy Contract and, that if the Tenant fails to pay the Rent or to observe or perform any of the Tenant covenants, the Guarantor shall pay or observe and perform them on its behalf.

8.2. The Guarantor covenants with the Landlord as a separate and independent primary obligation to indemnify the Landlord against any failure by the Tenant to pay the Rent or any failure to observe or perform any of the Tenant covenants of this Tenancy Contract.

8.3. The liability of the Guarantor under clause 8.1 and clause 8.2 shall continue for the duration of the Tenancy Period and any subsequent renewals until such times as the Tenant is released from the Tenant covenants of this Tenancy Contract.

- a) any time or indulgence granted by the Landlord to the Tenant;
- b) any delay or forbearance by the Landlord in enforcing the payment of the Rent or the observance or performance of any of the Tenant covenants of this Tenancy Contract or in making any demand in respect of them; or
- c) the Landlord exercising any right or remedy against the Tenant for any failure to pay the Rent or to observe or perform the tenant covenants of this Tenancy Contract;
- d) the Landlord taking any action or refraining from taking any action in connection with the Deposit; or
- e) the Tenant's untimely death or becoming incapable of managing its affairs.

11. SEMESTER BREAK AND SUMMER EXTENSIONS

11.1. This Tenancy Contract does not permit the Tenant to remain in the Room over the semester break and the summer vacation, and the Tenant must vacate the Room at the end of the Tenancy Period, unless the Landlord grants an extension, in accordance with this clause 11.

11.2. The Landlord does not guarantee that all applications for semester break and summer extensions will be successful, due to limited availability

11.3 If the Tenant wishes to stay in accommodation during the relevant breaks:

- a) The tenant must be an enrolled Student;

- b) the Tenant must have paid all rent and other sums due under the Tenancy Contract; and

- c) the Tenant must apply for the extension prior to the Semester Break and Summer Holiday, but not later than the 14th week of the semester of study

13. EXPENSES RELATED TO BREACHES OF THIS TENANCY CONTRACT OR RECOVERING POSSESSION

13.1. If the Tenant breaches this Tenancy Contract or fails to fulfil any of its obligations under this Tenancy Contract, the Tenant shall pay, within seven (7) days of written demand, any reasonable costs incurred by the Landlord in remedying such breaches or in connection with the enforcement of those obligations

7. AT THE END OF THE TENANCY CONTRACT

7.1. If there is no dispute, the Landlord will keep or repay the Deposit, according to the agreed deductions and the conditions of this Tenancy Contract. Payment of the Deposit or any remaining Deposit balance will be made within thirty (30) days from the Landlord and Tenant agreeing on the allocation of the Deposit.

7.2. The Tenant must inform the Landlord in writing if the Tenant intends to dispute any of the deductions regarded by the Landlord as due from the Deposit. Within 20 working days after the termination or earlier ending of this Tenancy and the Tenant vacating the Room. The Landlord may regard failure to comply with the time limit as a breach of the rules laid down by the Landlord and if asked to resolve any dispute may refuse to adjudicate in the matter.

7.3. If, after ten (10) working days following notification of a dispute to the Landlord, and reasonable attempts having been made in that time to resolve any differences of opinion, there remains an unresolved dispute between the Landlord and the Tenant over the allocation of the Deposit the dispute will (subject to clause 7.4 below) be submitted Courts of Dubai

7.4. The statutory rights of the Landlord and the Tenant to take legal action through the Court remain unaffected by this clause

10. SHARED ROOM CONTRACTS

10.1. Where the Room is designated for occupancy by more than one (1) person, this clause applies but not otherwise.

10.2. Each occupier will have a separate Tenancy Contract with the Landlord

10.3. Where damage or loss occurs in or to the Room and it is not possible for the Landlord (acting reasonably) to ascertain who is at fault, each Tenant will pay a fair and reasonable proportion of the cost of repairing the damage or reinstating the loss

10.4. The Tenant shall be charged the same 'shared room rentals' that they have been paying for, in the event the said Tenant becomes the sole occupier of such shared accommodation, provided such event did not occur because of any of their own acts.

10.5. The Landlord may introduce a second tenant to a room designed for multiple occupancy if it is solely occupied, without any prior notice to the Tenant in occupation of its intention to do so. 10.6. The Landlord shall not be obliged to relocate either Tenant in the event that sharing Tenants do not get on with each other, but will treat transfer requests sympathetically in such circumstances. Tenants in shared accommodation have the same rights to terminate their Tenancy Contract as those in single occupancy accommodation.

10.7. Tenants in shared accommodation will show the utmost respect for the other occupier(s) of the accommodation and for their belongings. The rights of the sharing tenants are equal and neither has precedence or preference over the other

12. COMPLETION OF TENANCY CONTRACT

12.1 When this Tenancy Contract comes to an end (however that may be) the Tenant will:

- a) attend a check out inspection by the Landlord's site management team and sign a copy of the inspection report;

- b) vacate the Room and remove all of their personal belongings from the Property and leave the Room and the Room Contents in the same clean state and condition as they were at the beginning of the Tenancy Period. If the Tenant fails to remove any of their property within fourteen (14) days in case of long-term stay (that spans for 30 days or more) and forty-eight (48) hours in case of short-term stay (less than 30 days) after this Tenancy Contract comes to an end, the Landlord may dispose of such property as the agent of the Tenant and the Tenant will indemnify the Landlord against any liability;

- c) jointly and severally with the other occupiers ensure that the Room Content Areas and Common Area Content are left in the same clean state and condition as they were in at the beginning of the Tenancy Period;

- d) ensure that any Room Contents or Common Area Content which may

13.2. If the Landlord (acting reasonably) considers that the Tenant is jointly responsible for a breach of this Tenancy Contract or a failure to fulfil any of its obligations under this Tenancy Contract then the Tenant shall bear a proportion of the costs incurred by the Landlord in remedying such breaches or in connection with the enforcement of those obligations. The proportion will be determined by the Landlord (acting reasonably) and the Tenant shall reimburse the Landlord for such cost within seven (7) days of the written demand.

13.3. The Tenant will also pay on demand all reasonable expenses, fees and costs incurred by the Landlord in connection with:

a) collecting or attempting to collect any sums which are due but unpaid by the Tenant under this Tenancy Contract;

b) ensuring that the Tenant gives up occupation of the Room once he/she is no longer entitled to occupy it; and

c) losses or damage in accordance with the Tenant codes of conduct and The Myriad Dubai policies & procedures, details of which are available in Student Handbook

15. TENANT INDEMNITY

15.1. If the Tenant ceases to be a student but continues to live in the Room, the Tenant must, within seven (7) days of written demand from the Landlord reimburse and indemnify the Landlord as a result of the Tenant's continued occupation of the Room. The Landlord expects the Tenant to be responsible for this violation and the consequences of ceasing to be a student.

15.2. The Tenant agrees to indemnify and hold harmless the Landlord and its officers, directors, employees, agents and affiliates from any claim, liability, loss, damage, cost, or expense (including without limitation reasonable attorney's fees) arising out of use of personnel.

15.3. Please note that any form of transportation to and from the property, in addition to any food & beverage and other retail options at the property are operated by third parties. As such, Tenants using any form of transportation, including shuttle buses, cars, motor bikes, cycles and scooters that are arranged by either the Landlord or the Tenant to and from the Property, in addition to Tenants consuming food & beverage, purchasing products and services, from MyBistro or any retail outlet at the property, will do so at their own risk. The tenant hereby agrees to indemnify and hold harmless the landlord, its officers, directors, employees, agents, and affiliates from any loss or damages (loss of life, bodily injury, damage to, or loss of property) of any kind, whether or not caused directly or indirectly by any negligence on the part of the vehicles and any negligence on the part of the transportation providers, its owner, any of its employees, or any other party acting on its behalf.

16. OBLIGATIONS OF THE LANDLORD

16.1. The Landlord agrees to:

a) allow the Tenant to quietly possess and enjoy the Room without unnecessary or unwarranted interference;

b) carry out those repairs in connection with the structure and exterior parts as well as plumbing, sanitary conveniences and installations such as electrical wiring and gas piping;

c) comply with the Furniture and Furnishings (Fire Safety) Regulations and any subsequent amendments;

d) insure the Room, the Room Contents and the Common Area Content (and for the avoidance of doubt, the Landlord will not insure the Tenant's personal possessions and the Landlord accepts no liability for loss or damage to the Tenant's personal possessions);

e) at the beginning of the Tenancy Period equip the Room with the Room Contents and the Common Areas with the Content; and

f) ensure that staff are clearly identifiable, and that any staff or contractor requiring access to the Room carries appropriate identification documents.

16.2. The Landlord agrees to provide the Tenant Services.

PROVIDED THAT: -

a) nothing in this Tenancy Contract shall limit or exclude the Landlord's liability for

have been moved during the Tenancy Period is returned to the location that it was in at the start of the Tenancy Period;

e) return all relevant keys, access cards etc. given to the Tenant at the start of the Tenancy Period to the Landlord, and for any not returned at the end of the Tenancy Period the Tenant will pay to the Landlord the cost of replacement keys/cards and any other administrative costs imposed by the Landlord; and

f) confirm to the Landlord the address or bank details to which the Deposit (less any deductions made in accordance with this Tenancy Contract) should be sent to.

14. TERMINATION OF THIS TENANCY CONTRACT

Landlord:

14.1. The Landlord may terminate this Tenancy Contract immediately, at any time, without the need for court or any other order, by issuing notice to the Tenant if

a) for any unpaid balance for fifteen (15) days in case of long-term stay (that spans for 30 days or more) and three (3) days in case of short-term stay (less than 30 days) from the due date whether it has been formally demanded or not;

b) the Tenant has breached the terms of this Tenancy Contract;

c) the Tenant ceases to be a University/College student;

d) fire or damage renders the Room or the Property unfit for use; or

e) in the reasonable opinion of the Landlord, the behaviour of the Tenant constitutes a serious risk to others living in the Property

f) belongings (tangible or intangible) or related to Tenant's use of the service offered within The Myriad Dubai or loss of data or any materials downloaded or uploaded through the service, any actions taken by Tenant in connection with Tenant's use of the service, any violation of any third party's rights or a violation of law or regulation, or any breach of this Tenancy Contract.

14.2. In the event that the Landlord terminates this Tenancy Contract in accordance with clause 14.1, the subsequent events shall occur

a) the tenant shall be penalized with one (1) month of Rent in case of a long-term stay (that spans for 30 days or more) and in case of a short-term stay (less than 30 days) will be penalized with seven (7) days Rent, regardless of whether it has been formally demanded or not;

b) the Tenancy Contract shall end on the date set out in the written notice, without prejudice to any right or remedy of the Landlord in respect of any breach of the terms of this Tenancy Contract by the Tenant.

Tenant:

14.3. The Tenant may terminate this Tenancy Contract, at any time during the Tenancy Period by giving one (1) month notice in case of a long-term stay (that spans for 30 days or more) and forty-eight (48) hours in case of short-term stay (less than 30 days) in writing to the Landlord that he/she wishes to leave and will be required to pay a penalty of one (1) month Rent in case of long-term stay (that spans for 30 days or more) and seven (7) days Rent in case of short-term stay (less than 30 days), but will remain liable for the clauses of this Tenancy Contract and its financial obligations until the date of termination.

14.4. Room swaps will not be treated as replacements and refunds of Rent will only be given where the void in the accommodation caused by the Tenant's early departure has been filled and there is no loss to the Landlord. The Landlord shall be entitled to fill any rooms which are already vacant before allocating them to people on its waiting list for accommodation.

14.5. If this Tenancy Contract is terminated early by the Tenant, before the end of the Tenancy Contract, the Landlord has the right to retain the Security Deposit in full.

14.6. The Landlord's acceptance of the keys/access cards at any time shall not in itself be effective to terminate this Tenancy Contract while any part of the Tenancy Period remains unexpired.

- i. death or personal injury caused by its negligence, or the negligence of its employees, agents or subcontractors; or
- ii. fraud or fraudulent misrepresentation.

b) Subject to clause 16.2(a):

- i. the Landlord shall, under no circumstances whatsoever, be liable to the Tenant, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, for any loss of profit, or any indirect or consequential loss arising out of or in connection with this Tenancy Contract;
 - ii. the Landlord's total liability to the Tenant in respect of all other losses arising out of or in connection with this Tenancy Contract, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, shall in no circumstances exceed the amount of Rent relating to the Tenancy Period.
- c) This clause 16.2 shall survive the termination of this Tenancy Contract.

18. GOVERNING LAW AND JURISDICTION

18.1. This Tenancy Contract, and any dispute or claim arising out of or in connection with it, or its subject matter shall have exclusive jurisdiction in the courts of Dubai, which will be governed by and construed in accordance with the laws of United Arab Emirates as applicable in the Emirate of Dubai.

20. SEVERABILITY

20.1. If any term, condition or contained in the Tenancy Agreement shall be held to be invalid, unlawful or unenforceable to any extent, the validity, legality or enforceability of the remaining parts of the Tenancy Contract shall not be affected.

17. NOTICES

17.1. Any notice to the Landlord sent under or in connection with this Tenancy Contract shall be deemed to have been properly served if:

a) a copy sent by post to the guarantor or served in Tenant's room; or b) sent to them via the fax number or e-mail address stated on the first page of this Tenancy Contract.

17.2. Any notice sent by post shall be deemed to have been received the day after it was sent.

17.4. For the purposes of the Landlord's address for service is the address as stated on the first page of this Tenancy Contract.

19. DATA PROTECTION

19.1. The Landlord will collect, hold and process data relating to the student (Personal Data) in order to meet its obligations under this Tenancy Contract in accordance with data protection laws and our privacy notices.

19.2. The Tenant hereby authorises the Landlord to disclose Tenant's Personal Data to authorities, universities, guarantors, family members and specified third parties.

19.3. In the event that we have serious concerns about the Tenant health or well-being we may contact Tenant named next of kin or guarantor or other person whom Tenant have nominated for this purpose. The Landlord will use and share the Guarantor's personal data in the course of exercising the rights under this Tenancy Contract against the Guarantor.

19.4. The Landlord reserve the right to disclose Tenant Personal Data to assist in the prevention of crime or to protect the vital interests.

RESIDENT SIGNATURE